Affiliate and Sales Rep Agreement

This agreement sets out how you promote and sell Totality and Totality Nutrition as an independent affiliate or sales rep, and how we pay you commission. Your details, codes and commission start point go in the Schedule on the last page.

1. Parties and purpose

1.1 This agreement is between **Totality 360 Pty Ltd** (ABN 58 698 902 975) of New South Wales (**we**, **us**, **Totality**) and the person or business named in the Schedule (**you**).

1.2 You will refer people and businesses to our apps, Totality and Totality Nutrition, using your own referral code or link. You can do this online, by phone, in video calls or in person.

1.3 A **Referred Customer** is a person or business that signs up to a paid plan using your code or link, or that we link to you in our system.

1.4 This agreement starts on the Start Date in the Schedule and continues until it is ended under section 7.

2. You are an independent contractor

2.1 You are an independent contractor running your own business. You are not our employee, partner, agent or joint venturer.

2.2 You are paid only for results: commission on what Referred Customers pay. You are not paid for your time, hours worked, meetings held or calls made.

2.3 You decide when, where and how you work. We do not set your hours, supervise your work or require you to work any minimum amount.

2.4 You supply your own phone, computer, internet, car and anything else you use, and you pay your own costs (travel, fuel, phone, advertising). We do not reimburse expenses unless we agree in writing first.

2.5 You can promote other products and services and work for other businesses while this agreement is in place.

2.6 You can engage your own staff or helpers, at your own cost. You are responsible for them and for making sure they follow this agreement.

2.7 Because you are not an employee, we do not pay you wages, superannuation, annual leave, sick leave, long service leave or any other employee entitlement. You are responsible for your own superannuation.

2.8 You are responsible for your own insurance, including any public liability, income protection or personal accident cover you choose to hold.

2.9 You cannot sign contracts, make promises or accept payments on our behalf.

3. ABN, tax and GST

3.1 You must hold a current Australian Business Number (ABN) and give it to us before we pay you any commission. Write it in the Schedule.

3.2 If you do not give us a valid ABN, the law requires us to withhold 47% of each payment and send it to the Australian Taxation Office. We will do that and pay you the rest.

3.3 You are responsible for your own tax. This includes declaring your commission as income, paying income tax, lodging returns and paying any instalments the ATO asks of you. We do not withhold tax from your commission once you have given us your ABN.

3.4 **If you are registered for GST:** tell us, give us a valid tax invoice for each payment, and we will add GST to your commission. You are responsible for paying that GST to the ATO.

3.5 **If you are not registered for GST:** we pay commission with no GST added. If you register later, tell us in writing and GST is added from your next payment.

3.6 Tell us within 14 days if your ABN is cancelled or your GST registration changes.

3.7 If a tax authority decides any amount should have been withheld or paid by us because of something you did not tell us, or told us wrongly, you will repay us that amount.

4. Commission

4.1 We pay you commission for every month a Referred Customer pays for their plan. There is no cap on how much you can earn.

Plan	Commission	Example per paying month
Totality trainer plans (all Solo plans)	25% of the standard plan price	Solo 20 at A$39.99: A$10.00
Totality gym plans (Studio, Club, Enterprise)	20% of the standard plan price	Studio A$78.00, Club A$130.00, Enterprise A$200.00
Totality Nutrition personal plans	30% of the standard plan price	A$2.70 (A$8.99 plan), A$3.60 (A$11.99 plan)
Totality Nutrition team seats	25% of what the team pays, before GST	100 seats on Nutrition + AI: A$224.75

4.2 "Standard plan price" means our listed monthly price for that plan, before any welcome offer, referral discount or promotion. Commission is on the plan itself, not on add-ons, unless we agree otherwise in writing.

4.3 **Yearly plans:** if someone signs up to a yearly plan with your code, it counts as your sale, even though they do not get the 70% referral discount on a yearly plan. We pay you the same monthly commission as the monthly version of that plan, for every month their yearly subscription is active.

4.4 **When cash commission starts** depends on the terms ticked in your Schedule:

- **Standard affiliate terms:** your first 5 paying Referred Customers earn you 20% off your own subscription each, stacking to 100% off, instead of cash. Cash commission starts from your 6th paying Referred Customer. The 20% off for each of those first 5 stays even if that customer later cancels.
- **Sales rep terms:** cash commission starts from your first paying Referred Customer.

4.5 No commission is paid for:

- months a Referred Customer does not pay, including free trials, free plans and gifted access
- yourself, your own business, or accounts you control
- clients of a trainer or members of a gym who join through that trainer or gym's own invite, rather than your code
- sign-ups made through spam, fake accounts, misleading claims or anything else that breaches this agreement

4.6 We pay commission monthly, by bank transfer, within 14 days after the end of each month, for payments we received from Referred Customers in that month.

4.7 If we refund a payment, or a payment is reversed or charged back, the commission on it is cancelled. If we have already paid it, we take it off your next payment.

4.8 Our records of sign-ups, codes and payments decide what commission is owed. If you think a payment is wrong, tell us within 60 days and we will check it with you in good faith.

4.9 We can change commission rates or plan prices by giving you 30 days' written notice. Changes apply only to payments after the notice period ends.

5. How you promote us

5.1 **Be accurate.** Only describe features, prices and offers that our apps and website actually have today. Use our sales decks, website and How to use guides as your source. If you are not sure, ask us before you say it. Never promise results, discounts or features we have not confirmed.

5.2 **Say you are paid.** When you post or talk about us publicly, make it clear you earn commission or have a code (for example "#ad" or "I earn commission if you sign up with my code").

5.3 **No spam.** Follow the Spam Act 2003. Only email or text people who have agreed to hear from you, or whose business address is published for that kind of enquiry. Always say who you are and give a way to opt out. Do not guess email addresses or buy contact lists.

5.4 **No fake reviews or accounts.** Do not write reviews, testimonials or ratings pretending to be a customer, and do not create accounts to earn commission.

5.5 **Our brand.** You can use our names, logos, screenshots and sales materials only to promote our apps under this agreement. Do not change our logos, register domains, social handles or business names using our names, or run paid ads on our brand names without our written OK.

5.6 **No pressure selling.** Do not mislead, pressure or harass anyone into signing up. Follow the Australian Consumer Law.

5.7 **Your own discounts.** Do not offer discounts, refunds, cash or gifts of your own to get sign-ups unless we agree in writing first.

6. Privacy and confidentiality

6.1 Any personal information you collect about prospects or customers must be handled under the Privacy Act 1988. Only collect what you need, keep it secure, and do not sell or share it.

6.2 Anything we share with you that is not public (pricing plans before launch, customer details, sales figures, our systems) is confidential. Do not share it with anyone, during or after this agreement.

7. Ending this agreement

7.1 Either of us can end this agreement at any time by giving 14 days' written notice (email is fine).

7.2 We can end it straight away by written notice if you breach section 5 or section 6, or seriously breach any other part of this agreement.

7.3 When it ends, you must stop using our brand and materials, and stop using your codes.

7.4 If this agreement ends, we keep paying you commission on your existing Referred Customers for every month they keep paying, unless we ended it under 7.2. You earn nothing on anyone who signs up after the end date.

8. Liability

8.1 We are not responsible for your costs, losses or any income you expected to earn.

8.2 You are responsible for, and will repay us for, any loss, claim or fine we suffer because you broke the law or this agreement, including the Spam Act, Privacy Act or Australian Consumer Law.

8.3 Nothing in this agreement excludes rights that cannot be excluded by law.

9. General

9.1 We can update this agreement by giving you 30 days' written notice. If you do not agree, you can end it under section 7.1.

9.2 You cannot transfer this agreement to someone else without our written OK.

9.3 This is the whole agreement between us about being an affiliate or sales rep. It replaces any earlier agreement or understanding.

9.4 This agreement is governed by the laws of New South Wales, Australia.

Schedule: your details

Please fill in every line. Print clearly.

Full name _____

Business name (if any) _____

ABN _____

Registered for GST? ☐ Yes ☐ No

Postal address _____

Email _____

Phone _____

Start Date _____

Bank details for commission payments are collected separately and securely. Please do not write them on this form.

Office use (Totality fills this in)

Totality code _____

Totality Nutrition code _____

Commission terms ☐ Standard affiliate (cash from 6th) ☐ Sales rep (cash from 1st)

Your own app access _____

Signed

For Totality 360 Pty Ltd

Name _____

Position _____

Signature _____

Date _____

Affiliate or sales rep

Name _____

Signature _____

Date _____